

26STCV08255 26STCV08255

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Case Number: 26STCV08255 Hearing Date: August 24, 2026 Dept: 408

Defendant JYJ Distribution Inc.'s Motion to Set

Aside/Vacate Default is GRANTED.

I.

BACKGROUND

On March

13, 2026, Plaintiff TJE Company ("Plaintiff") filed a complaint against

Defendants JYJ Distribution Inc. ("JYJ") and Lin Zhang ("Zhang", collectively "Defendants")

alleging causes of action for:

1.

Breach

of Written Lease;

2.

Breach

of Written Guaranty;

3.

Common

Count-Open Book Account;

4.

Contractual

Indemnity; and

5.

Declaratory

Relief.

On May 6, 2026, pursuant to Plaintiff's request, default was entered against JYJ.

On June 30, 2026, JYJ filed this Motion to Set Aside/Vacate Default. On August 13, 2026, Plaintiff filed an opposition. On August 17, 2026, Plaintiff filed a supplemental opposition. On August 17, 2026, JYJ filed a reply. On August 18, 2026, JYJ filed a supplemental reply.

II.

LEGAL STANDARD

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken." (Ibid.)

"[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]" (Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 981-982.)

Code of Civil Procedure section 473(b) provides both discretionary and mandatory relief from orders. Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code of Civ. Proc. § 473, subd. (b).)

"The terms mistake, inadvertence, surprise, and excusable neglect warranting relief under section 473(b) are defined as follows: 'Mistake

is not a ground for relief under section 473, subdivision (b), when “the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law...” [Citation.] Further, “[t]he term ‘surprise,’ as used in section 473, refers to “some condition or situation in which a party ... is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.” [Citation.]” Finally, as for inadvertence or neglect, “[t]o warrant relief under section 473 a litigant’s neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief.’ [Citation.]” (Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 229-230.)

III.

DISCUSSION

JYJ seeks relief pursuant to Code of Civil Procedure section 473(b) to set aside the default entered against it on May 6, 2026. (Motion, at p. 3.) JYJ contends that their failure respond to Plaintiff’s complaint was the result of mistake, inadvertence, surprise, or excusable neglect. (Ibid.) In support, JYJ provides that Plaintiff filed Case No. 25PSCV04172 on November 19, 2025 (“Pomona Action”) for unlawful detainer against Defendants. (Harding Decl., ¶ 2, Exh. 1.) Following conversations between counsel for Plaintiff and JYJ, Plaintiff informed JYJ that the Pomona Action had been dismissed on March 13, 2026, the same day it Plaintiff filed the instant action. (Id., ¶¶ 3-7, Exh. 3.) It was not until JYJ received the Entry of Default at issue that it understood that Plaintiff had filed this case and sought to set aside the entry of default through stipulation with Plaintiff which was unsuccessful. (Id., ¶¶ 8-13, Exh. 4; Cao Decl., ¶¶ 3-9[1].)

In opposition, Plaintiff argues that JYJ failed to establish that its failure to respond to the complaint resulted from mistake, inadvertence, surprise, or excusable neglect as there is no evidence that a reasonably prudent corporation receiving an entirely new summons, complaint, case number, and notice of case assignment would reasonably conclude that those documents merely concerned dismissal of an earlier case. (Opp., at pp. 3-9.)[2]

The court finds that the default entered against JYJ was due to its mistake, inadvertence, surprise, or excusable neglect based on the confusion presented by the simultaneous dismissal and filing of the actions. The motion is also timely as it was filed within the six-month deadline. (Code Civ. Proc., § 473, subd. (b).) JYJ also attaches a copy of the demurrer intended to be filed in response to Plaintiff's complaint. (Harding Decl., ¶ 14, Exh. 6.) The court finds that the circumstances warrant discretionary relief under Section 473(b) to allow the action to be tried on the merits.

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendant JYJ Distribution Inc.'s Motion to Set Aside/Vacate Default is GRANTED.

[1] The court overrules Plaintiff's objections to the Declaration of Tiffany Cao. (Harding Decl., ¶ 8, Exh. 4.)

[2] In its supplemental opposition, Plaintiff also contends that JYJ did not provide sufficient notice of the hearing for this motion as the notice provide a hearing date of August 26, 2026, when it is actually calendar for August 24, 2026. (Supp. Opp., at pp. 2-3.) Plaintiff contends that the notice issue caused a delay in filing the opposition and requests that the court consider the opposition on the merits. (Id., at pp. 3-4.) The court exercises its discretion to consider the moving papers, opposition, and reply on the merits despite any purported procedural deficiencies.